



Federal Bureau of Investigation
Department of Homeland Security

Strategic Intelligence Assessment and Data on
Domestic Terrorism

Submitted to the Permanent Select Committee on Intelligence, the Committee on Homeland Security, and the Committee of the Judiciary of the United States House of Representatives, and the Select Committee on Intelligence, the Committee on Homeland Security and Governmental Affairs, and the Committee of the Judiciary of the United States Senate

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I. Overview of Reporting Requirement

The National Defense Authorization Act for Fiscal Year 2020 (the Act) requires the Director of the Federal Bureau of Investigation (FBI) and the Secretary of Homeland Security, in consultation with the Director of National Intelligence (DNI), to jointly produce a report containing a strategic intelligence assessment and data on domestic terrorism (DT).¹ The Act requires the report to contain a strategic intelligence assessment, a discussion of activities, certain data on DT matters, and recommendations.

II. Executive Summary

Preventing terrorist attacks remains a top priority for both the FBI and the Department of Homeland Security (DHS). The threat posed by international and domestic threat actors has evolved significantly since 9/11. The greatest terrorism threat to the Homeland we face today is posed by lone offenders,² often radicalized online, who look to attack soft targets with easily accessible weapons. Many of these violent extremists are motivated and inspired by a mix of socio-political goals and personal grievances against their targets. With this report, we are providing our strategic intelligence assessments on DT, a detailed discussion of our procedures and methods to address DT threats, as well as data on DT incidents and our investigations.

III. Introduction

The FBI and DHS are both charged with preventing terrorist attacks in the United States, including those conducted by Domestic Violent Extremists (DVEs).³ This goal drives the FBI's mission to proactively lead law enforcement and domestic intelligence efforts to defeat terrorist attacks against US citizens and US interests through an integrated strategy to detect, penetrate,

¹ Public Law 116-92, enacted 20 December 2019.

² The FBI and DHS defines a lone offender as an individual motivated by one or more violent extremist ideologies who, operating alone, supports or engages in acts of unlawful violence in furtherance of that ideology or ideologies that may involve influence from a larger terrorist organization or a foreign actor.

³ The FBI and DHS define a Domestic Violent Extremist (DVE) as an individual based and operating primarily within the United States or its territories without direction or inspiration from a foreign terrorist group or other foreign power who seeks to further political or social goals wholly or in part through unlawful acts of force or violence. The mere advocacy of political or social positions, political activism, use of strong rhetoric, or generalized philosophic embrace of violent tactics may not constitute extremism, and may be constitutionally protected.

disrupt, and dismantle criminal DT plots, and the FBI and DHS missions to provide strategic analysis of the DVE landscape.

DT for the FBI's purposes is referenced in US Code at 18 U.S.C. § 2331(5), and is defined as activities:

- Involving acts dangerous to human life that are a violation of the criminal laws of the United States or of any State;
- Appearing to be intended to:
 - Intimidate or coerce a civilian population;
 - Influence the policy of government by intimidation or coercion; or
 - Affect the conduct of a government by mass destruction, assassination or kidnapping; and
- Occurring primarily within the territorial jurisdiction of the United States.

In comparison, international terrorism (IT) for the FBI's purposes is referenced in U.S. Code at 18 U.S.C. § 2331(1), and is defined as activities:

- Involving violent acts or acts dangerous to human life that are a violation of the criminal laws of the United States or of any State, or that would be a criminal violation if committed with the jurisdiction of the United States or of any State;
- Appearing to be intended to:
 - Intimidate or coerce a civilian population;
 - Influence the policy of government by intimidation or coercion; or
 - Affect the conduct of a government by mass destruction, assassination or kidnapping; and
- Occurring primarily outside the territorial jurisdiction of the United States, or transcend national boundaries in terms of the means by which they are accomplished, the persons they appear intended to intimidate or coerce, or the locale in which their perpetrators operate or seek asylum.⁴

The DHS derives its definition of DT from the Homeland Security Act definition of terrorism, 6 U.S.C. 101(18), which is similar to, but not identical, to the 18 U.S.C. 2331(5) definition. Under the Homeland Security Act, terrorism:

⁴ In certain instances, a DVE's conduct may eventually lead to the DVE engaging in international terrorism, as defined in 18 U.S.C. § 2331(1).

- Involves an act that:
 - Is dangerous to human life or potentially destructive of critical infrastructure or key resources; and
 - Is a violation of the criminal laws of the United States or any State or other subdivision of the United States, and
- Appears to be intended to:
 - Intimidate or coerce a civilian population;
 - Influence the policy of a government by intimidation or coercion; or
 - Affect the conduct of a government by mass destruction, assassination, or kidnapping.

In our discussion of DT threats, we use the words “violent extremism” to define DT threats because mere advocacy of political or social positions, political activism, use of strong rhetoric, or generalized philosophic embrace of violent tactics may not constitute violent extremism, and may be constitutionally protected. Under FBI policy and federal law, no investigative activity may be based solely on First Amendment activity, or the apparent or actual race, ethnicity, national origin, religion, gender, sexual orientation, or gender identity of the individual or group. The FBI does not investigate, collect, or maintain information on US persons solely for the purpose of monitoring activities protected by the First Amendment.

While the majority of DVEs fall into one threat category, some draw upon or are inspired by ideological themes found in other threat categories, as depicted in the following graphic.



RACIALLY OR ETHNICALLY MOTIVATED VIOLENT EXTREMISTS

DVEs with ideological agendas derived from bias, often related to race or ethnicity, held by the actor against others, including a given population group.



ANIMAL RIGHTS/ ENVIRONMENTAL VIOLENT EXTREMISTS

DVEs seeking to end or mitigate perceived cruelty, harm, or exploitation of animals or perceived exploitation or destruction of natural resources and the environment.



ABORTION-RELATED VIOLENT EXTREMISTS

DVEs with ideological agendas in support of pro-life or pro-choice beliefs.



ANTI-GOVERNMENT/ANTI-AUTHORITY VIOLENT EXTREMISTS

DVEs with ideological agendas derived from anti-government or anti-authority sentiment, including opposition to perceived economic, social, or racial hierarchies; or perceived government overreach, negligence, or illegitimacy.

MILITIA VIOLENT EXTREMISTS:

DVEs who take overt steps to violently resist or facilitate the overthrow of the US Government in support of their belief that the US Government is purposely exceeding its Constitutional authority and is trying to establish a totalitarian regime; oppose many federal and state laws and regulations, particularly those related to firearms ownership.

ANARCHIST VIOLENT EXTREMISTS:

DVEs who oppose all forms of capitalism, corporate globalization, and governing institutions, which are perceived as harmful to society.

SOVEREIGN CITIZEN VIOLENT EXTREMISTS:

DVEs who believe they are immune from government authority and laws.



ALL OTHER DOMESTIC TERRORISM THREATS

DVEs with ideological agendas that are not otherwise defined under one of the other domestic terrorism threat categories, including a combination of personal grievances and beliefs with potential bias related to religion, gender, or sexual orientation.

IV. Strategic Intelligence Assessment

The Act calls for a strategic intelligence assessment of DT in the United States during 2017, 2018, and 2019.

Since 2017, while the FBI successfully investigated and disrupted DVE activities, plots, and threats, and the FBI and DHS continued to provide strategic warnings and analysis of the heightened DVE threat, DVE lone offenders acting independently and without direction from specific groups have been the primary actor in DT lethal attacks. The FBI and DHS assessed lone offenders would continue to be the primary actor in these attacks, and would continue to pose significant mitigation challenges due to their capacity for independent radicalization and mobilization and preference for easily accessible weapons. The FBI and DHS assessed multiple factors, including perceptions of or responses to political and social conditions and law

enforcement and government overreach, would also almost certainly continue to contribute to DVE radicalization, target selection, and mobilization in violation of federal, state, and local law and hate crime⁵ statutes.

Strategic Intelligence Assessment for 2017

In 2017, DVEs remained a persistent source of violence, with Racially or Ethnically Motivated Violent Extremists (RMVEs)⁶ advocating for the superiority of the white race and Anti-Government or Anti-Authority Violent Extremists (AGAAVEs) – primarily Anarchist Violent Extremists (AVEs),⁷ Militia Violent Extremists (MVEs),⁸ and Sovereign Citizen Violent Extremists (SCVEs)⁹ – presenting the greatest threats of violence. RMVEs were the primary sources of lethal and significant violence, with lone offenders conducting lethal attacks against targets of opportunity, using non-complex tactics and accessible weapons. The FBI and DHS assessed broad drivers of domestic violent extremism, including perceptions of or responses to government activity, and social, political, and economic conditions, continued to feed a consistent level of domestic violent extremism, although trends within individual extremist movements remained dynamic.

DVE violence in 2017 consisted primarily of attacks or threatening behavior against accessible targets or individuals, using weapons acquired with relative ease, including firearms and bladed weapons, or unsophisticated tactics such as physical assaults. Law enforcement and racial minorities were the prevalent DVE targets in 2017, with race providing a principal focus for RMVEs espousing the superiority of the white race, and law enforcement and government continuing to represent key targets of interest for AGAAVEs, specifically MVEs and SCVEs. Numerous violent encounters also took place between perceived ideological opponents.

⁵ A hate crime is a criminal offense that was motivated, in whole or in part, by the offender's bias against a person's actual or perceived race/ethnicity/ancestry, national origin gender, gender identity, religion, disability, or sexual orientation, and was committed against persons, property, or society.

⁶ As defined by the FBI and DHS, racially or ethnically motivated violent extremism encompasses the potentially unlawful use or threat of force or violence in furtherance of ideological agendas derived from bias, often related to race or ethnicity, held by the actor against others or a given population group. RMVEs purport to use both political and religious justifications to support their racially- or ethnically-based ideological objectives and criminal activities.

⁷ As defined by the FBI and DHS, anarchist violent extremism encompasses the potentially unlawful use or threat of force or violence in furtherance of an anti-government or anti-authority violent extremist ideology that considers capitalism and centralized government to be unnecessary and oppressive.

⁸ As defined by the FBI and DHS, militia violent extremism encompasses the potentially unlawful use or threat of force or violence in furtherance of an anti-government or anti-authority violent extremist ideology in response to perceived abuses of power by the government, especially in regard to suspected infringements on gun rights; excessive use of force by law enforcement; or bureaucratic incompetence in attending to critical tasks.

⁹ As defined by the FBI and DHS, sovereign citizen violent extremism encompasses the potentially unlawful use or threat of force or violence in furtherance of anti-government or anti-authority violent extremist ideological agendas by those who identify as sovereign citizens. Sovereign citizens are US citizens who claim to have special knowledge or heritage that renders them immune from government authority and laws.

Abortion-Related Violent Extremists¹⁰ and Animal Rights/Environmental Violent Extremists¹¹ also remained sources of harm or economic damage through criminal acts of destruction, sabotage, or arson.

In 2017, DVEs conducted five lethal attacks using bladed weapons, firearms, and a vehicular ramming that resulted in the deaths of eight individuals. Of those lethal incidents, RMVEs were responsible for four attacks resulting in seven deaths, and MVEs, a subset of the AGAAVE threat category, conducted one attack resulting in one death. Of the four attacks conducted by RMVEs, RMVEs espousing the superiority of the white race conducted two attacks resulting in two deaths, and RMVEs who used racism or injustice in American society to justify their use of violence conducted the other two attacks resulting in five deaths.

Both the FBI and DHS continued to work with state and local law enforcement partners in matters related to domestic violent extremism, including through provision of strategic analysis of the threat, and enhanced both independent and joint collaborative reporting, collection, and targeting efforts via human source and technical means.

Strategic Intelligence Assessment for 2018

In 2018, the FBI and DHS assessed DVEs posed a persistent and evolving threat of violence, with RMVEs advocating for the superiority of the white race and AGAAVEs, specifically SCVEs, engaging in lethal attacks. Abortion-Related Violent Extremists, Animal Rights/Environmental Violent Extremists, and Puerto Rican National Violent Extremists,¹² which is a subset of the AGAAVE threat category, also caused harm and economic damage through criminal acts of property destruction and arson. The six fatal DVE attacks in 2018 underscored how DVEs acting as lone offenders continued to advance their extremist ideologies by engaging in lethal attacks and acts of violence against targets of opportunity, using rudimentary tactics and readily accessible weapons. DVEs were primarily enabled by their use of the Internet, including social media platforms, which has increasingly enabled individuals to radicalize online and engage other DVEs without having to join organized groups.

In 2018, DVE lone offenders conducted six lethal attacks using bladed weapons, firearms, and violent assaults that resulted in the deaths of 17 individuals. Of those lethal incidents, RMVEs advocating for the superiority of the white race were responsible for five attacks resulting in 16

¹⁰ As defined by the FBI and DHS, abortion-related violent extremism encompasses the potentially unlawful use or threat of force or violence in furtherance of ideological agendas relating to abortion, including individuals who advocate for violence in support of either pro-life or pro-choice beliefs.

¹¹ As defined by the FBI and DHS, animal rights/environmental violent extremism encompasses the potentially unlawful use or threat of force or violence in furtherance of ideological agendas by those seeking to end or mitigate perceived cruelty, harm, or exploitation of animals and/or the perceived exploitation or destruction of natural resources and the environment.

¹² As defined by the FBI, Puerto Rican national violent extremism encompasses the potentially unlawful use or threat of force or violence in furtherance of anti-government or anti-authority violent extremist ideological agendas by those seeking independence for Puerto Rico by destabilizing the relationship between the US Government and the Government of Puerto Rico – which they view as a proxy of the United States. The DHS does not utilize a separate definition for this activity.

deaths, and an SCVE, a subset of the AGAAVE threat category, was responsible for one attack resulting in one death.

MVEs, a subset of the AGAAVE threat category, continued to espouse violent rhetoric, often lacking intent or credibility, to engage in violence against Muslims, political activists, and protestors to protect their vision of public safety, such as border-related issues. In addition to the previously mentioned 2018 lethal attack conducted by an SCVE in response to law enforcement actions, SCVEs also engaged in non-lethal criminal activity in response to law enforcement actions and criminal activity motivated by perceptions that the US Government is illegitimate, including identity and financial fraud, property theft, and attempts to institute sovereign citizen “common law.” AVEs, another subset of the AGAAVE threat category, conducted criminal acts and may have used improvised incendiary devices to target law enforcement and others during confrontations.

An expansive set of factors, including responses to government activity, in addition to social, economic, and political conditions, was assessed to very likely contribute to inspire DVE radicalization, target selection, and mobilization in violation of federal law. As DVE attacks, plot disruptions, and other criminal acts reflected persistent aspirations for large-scale or mass-casualty acts of violence by lone offenders, the FBI continued to work with state and local law enforcement partners to sustain and enhance collaborative efforts to mitigate the DVE threat. Both the FBI and DHS continued efforts to publish joint analytic products to our shared stakeholders in this field.

Strategic Intelligence Assessment for 2019

In 2019, the FBI and DHS assessed RMVEs, primarily those advocating for the superiority of the white race, likely would continue to be the most lethal DVE threat to the Homeland. Our agencies had high confidence in this assessment based on the demonstrated capability of RMVEs in 2019 to select weapons and targets to conduct attacks, and the effectiveness of online RMVE messaging calling for increased violence. Additionally, other DVEs likely would continue to engage in non-lethal violence and other criminal activity, and DVE reactions to socio-political events and conditions could increase attacks. The year 2019 represented the most lethal year for DVE attacks since 1995, with five separate DVE attacks resulting in 32 deaths, 24 of which occurred during attacks conducted by RMVEs advocating for the superiority of the white race.

Themes like “gamification” and “accelerationism” partly inspired some of the attacks in 2019 and likely will continue to inspire future plots. Gamification is a term where fatality counts in attacks are referred to as “scores,” as the actor desires to accomplish “achievements” or high kill counts.¹³ Messaging from RMVEs espousing the superiority of the white race has furthered this narrative by framing previous attacks as resulting in a “score.” Additionally, widely disseminated propaganda on online forums and encrypted chat applications that espouse similar themes regarding kill counts could inspire future attackers to mobilize faster or attempt increasingly lethal and more sophisticated attacks. These online forums and chat applications also reference accelerationism, a belief amongst some neo-Nazi and/or fascist RMVEs that the current system

¹³ Gamification includes the notion of recording an attack from the attacker’s perspective, similar to a first-person shooter video game.

is irreparable, without apparent political solutions, and hence violent action is needed to precipitate societal collapse to start a race war.

Other DVE criminal activity, such as vandalism and threats of violence, as a perceived means of achieving social and political goals likely would continue to impact public safety and critical infrastructure in 2020. In 2019, non-lethal DVE criminal activity was similar to what had been observed in previous years. The activity was motivated by traditional drivers and targets, including changes to abortion or environmental laws. However, changes to the political environment could result in an increase in the frequency of criminal activity or could inspire some DVEs to attempt to engage in lethal activity.

Both the FBI and DHS assessed DVEs likely would continue to focus on attacking soft targets and use gamification to encourage higher fatality attacks. The propagation of accelerationism almost certainly would perpetuate the threat from RMVEs who espouse the superiority of the white race. Political disagreements within the United States could present opportunities for DVEs to engage in violence against individuals perceived to have opposing ideologies, prominent political or public figures, or members of the media covering these events.

V. Discussion and Comparison of Investigative Activities

The Act calls for a discussion and comparison of the following activities:

- The criteria for opening, managing, and closing DT and IT investigations.
- Standards and procedures for the FBI with respect to the review, prioritization, and mitigation of DT and IT threats in the United States.
- The planning, development, production, analysis, and evaluation of intelligence and intelligence products relating to terrorism, noting any differences with respect to DT and IT.
- The sharing of information relating to DT and IT by and between the federal government; state, local, tribal, territorial, and foreign governments; the appropriate congressional committees; nongovernmental organizations; and the private sector.
- The criteria and methodology used by the FBI to identify or assign terrorism classifications to DT investigations.
- Compliance with privacy, civil rights, and civil liberties policies and protections, including protections against the public release of names or other personally identifiable information of individuals involved in incidents, investigations, indictments, prosecutions, or convictions for which data is reported under the Act.
- Information regarding any training or resources provided to assist federal, state, local, and tribal law enforcement agencies in understanding, detecting, deterring, and investigating acts of DT, including the date, type, subject, and recipient agencies of such training or resources.

Criteria for Opening, Managing, and Closing DT and IT Investigations

Opening: The FBI opens a full investigation¹⁴ predicated on an “articulable factual basis” that reasonably indicates the existence of federal criminal activity or a threat to national security, or to protect against such activity or threat. The opening of a full investigation must be approved by a Supervisory Special Agent, and notice to the responsible Headquarters unit must be provided within 15 days of opening. The FBI may open a preliminary investigation¹⁵ on the basis of any “allegation or information” indicative of possible criminal activity or threats to the national security.¹⁶ The opening of a preliminary investigation by a Field Office requires the approval of a Supervisory Special Agent, but does not require notice to the Department of Justice (DOJ), unless it involves a sensitive investigative matter (SIM).¹⁷

For a national security full investigation of a US person, Headquarters must notify the DOJ/National Security Division within 30 days. The opening of an investigation involving a SIM must be reviewed by the Field Office’s Chief Division Counsel (CDC), approved by the Special Agent in Charge, and provided to the responsible Headquarters Unit Chief within 15 days of opening as notice. The Field Office must notify the US Attorney’s Office within 30 days unless inappropriate, and in that case, Headquarters must notify and provide an explanation to DOJ within 30 days.

No investigation may be opened based solely on activities protected by the First Amendment or the lawful exercise of rights secured by the Constitution or laws of the United States.

The opening of a preliminary or full investigation classified as a DT matter must be approved by the Field Office’s CDC; however, the opening of a full investigation classified as an IT matter does not have the same requirement.

Managing: The *Attorney General’s Guidelines for Domestic FBI Operations (AGG-Dom)* authorize all lawful investigative methods in the conduct of a full investigation. The FBI requires file reviews of full investigations every 90 days. Some of the investigative methods the FBI is

¹⁴ A full investigation may be opened if there is an “articulable factual basis” for the investigation that reasonably indicates one of the following circumstances exists: an activity constituting a federal crime or a threat to the national security has or may have occurred, is or may be occurring, or will or may occur, and the investigation may obtain information relating to the activity or the involvement or role of an individual, group, or organization in such activity.

¹⁵ A preliminary investigation is a type of predicated investigation that may be opened (predicated) on the basis of any “allegation or information” indicative of possible criminal activity or threats to the national security. Preliminary investigations may be opened to detect, obtain information about, or prevent or protect against federal crimes or threats to the national security.

¹⁶ The significance of the distinction between the full and preliminary investigation is in the availability of investigative tools. A preliminary investigation, which is based on the lesser factual predicate, limits the investigative tools and methods available, while the full investigation, which is based on the more robust factual predicate, permits the full range of legally available investigative tools and methods. In some instances, cases opened as preliminary investigations may be converted to full investigations based on the development of additional facts during the course of the investigation.

¹⁷ A sensitive investigative matter (SIM) involves the activities of a domestic public official or political candidate (involving corruption or a threat to the national security), religious or political organization or individual prominent in such an organization, or news media, or any other matter which, in the judgment of the official authorizing an investigation, should be brought to the attention of FBI Headquarters and other DOJ officials.

authorized to use differ between DT and IT investigations. For example, a full investigation of a DT matter may conduct electronic surveillance pursuant to Title III of the Omnibus Crime Control and Safe Streets Act of 1968, but a full investigation of an IT matter may conduct electronic surveillance pursuant to the Foreign Intelligence Surveillance Act of 1978, as amended. Additionally, investigations of DT matters may make use of federal grand jury subpoenas to compel the disclosure of records and other relevant information, but investigations of IT matters may also use a National Security Letter¹⁸ to compel such records. Finally, investigations of DT matters must be periodically reviewed by the Field Office's CDC, and investigations of IT matters do not have the same requirement.

Closing: A Supervisory Special Agent must approve the closure of both full and preliminary investigations. A preliminary investigation must be closed within six months of its opening but may be extended for an additional six months. At the conclusion of either type of investigation, each of the following items must be documented:

- A summary of the results of the investigation.
- Whether logical and reasonable investigation was completed.
- Whether all investigative methods/techniques initiated have been completed and/or discontinued.
- Whether all leads set have been completed and/or discontinued.
- Whether all evidence has been returned, destroyed, or retained in accordance with evidence policy.
- A summary statement of the reason the full investigation will be closed.

At the conclusion of a full investigation, the Field Office must also document whether sufficient personnel and financial resources were expended on the investigation, or an explanation/justification for not expending sufficient resources.

There are no substantive differences in how the FBI closes full investigations of DT or IT matters.

The following chart presents a comparison of FBI policies for both DT and IT preliminary and full investigations.

¹⁸ A National Security Letter is an administrative demand for documents or records that are relevant to a predicated investigation to protect against international terrorism or clandestine intelligence activities.

	Preliminary Investigation	Full Investigation
Predication	Information or an allegation indicating the existence of federal criminal activity or a threat to national security (or to protect against such activity or threat)	Articulate factual basis that reasonably indicates the existence of federal criminal activity or a threat to national security (or to protect against such activity or threat)
Approval to Open	- Supervisory Special Agent - If a Domestic Terrorism (DT) matter, Field Office (FO) Chief Division Counsel (CDC)	- Supervisory Special Agent - Notice to the responsible Headquarters (HQ) unit must be provided within 15 days of opening - If a DT matter, FO CDC
Approval to Open: Sensitive Investigative Matter (SIM)	- FO CDC - FO Special Agent in Charge (SAC) - Notice to responsible HQ Unit Chief within 15 days of opening. - Notice to the US Attorney's Office (USAO) within 30 days unless inappropriate, and in that case, HQ must notify and provide an explanation to DOJ within 30 days	- FO CDC - FO SAC - Notice to responsible HQ Unit Chief within 15 days of opening - Notice to the USAO within 30 days unless inappropriate, and in that case, HQ must notify and provide an explanation to DOJ within 30 days
File Review	Every 90 calendar days	Every 90 calendar days
Examples of Authorized Investigative Methods	In a DT Matter: - Obtain public information - Physical surveillance - Federal grand jury subpoenas In an International Terrorism (IT) Matter: - Obtain public information - Physical Surveillance - Federal grand jury subpoenas and National Security Letters (NSLs)	In a DT Matter: - Obtain public information - Physical surveillance - Federal grand jury subpoenas - Electronic surveillance pursuant to Title III of the Omnibus Crime Control and Safe Streets Act of 1968 In an IT Matter: - Obtain public information - Physical Surveillance - Federal grand jury subpoenas and NSLs - Electronic surveillance pursuant to Foreign Intelligence Surveillance Act of 1978, as amended
Closure	Must be closed within six months but may be extend for an additional six months	No duration limit
Approval to Close	Supervisory Special Agent	Supervisory Special Agent
Approval to Close: SIM	Supervisory Special Agent, with SAC approval	Supervisory Special Agent, with SAC approval

Standards and Procedures for Reviewing, Prioritizing, and Mitigating DT and IT Threats

The FBI uses the Threat Review and Prioritization (TRP) process as a standardized method for reviewing and prioritizing threats within operational programs to inform threat strategies, mitigation plans, and resource allocation. Headquarters operational divisions use the TRP process to uniformly define threat issues for the organization, determine their prioritization at the national level, establish FBI National Threat Priorities (NTPs), and cascade those threat issues and the national threat strategies for the NTPs to the FBI enterprise. Field Offices then use the TRP process to prioritize threat issues for their specific areas of responsibility (AORs) and create threat strategies to mitigate threats. The FBI conducts the TRP process on a biennial basis, but it may be conducted annually at the discretion of the Field Office or Headquarters operational division head.

The TRP process is consensus-based and includes applicable US Attorney's Office(s) and stakeholders to determine prioritization (banding) and to develop threat strategies for mitigation of threat issues. Headquarters operational divisions develop national threat strategies for each threat issue to guide enterprise-wide mitigation efforts. Field Offices develop threat strategies annually for all threat issues they band, and they detail the particular steps their Field Office plans to take to mitigate each banded threat issue in their AOR. These threat strategies must be used to guide mitigation of each threat issue for the upcoming fiscal year, unless a change in threat banding or threat strategies occurs during midyear negotiations. The TRP of the FBI is classified as it incorporates sources and methods as a basis of strategic alignment of national security resources.

There are no differences in how the FBI reviews and prioritizes DT and IT threats; however, the threat band dictates priorities within these programs. Investigative methods the FBI is authorized to use differ between DT and IT investigations, and DT investigations may be subject to additional legal review.

Planning, Development, Production, Analysis, and Evaluation of Intelligence and Intelligence Products Relating to DT and IT

The FBI intelligence cycle for both DT and IT matters consists of planning intelligence efforts around priorities based on national or Field Office threat strategies, collecting raw intelligence information, processing and synthesizing data, analyzing and crafting assessments into analytic intelligence products, disseminating those products, briefing analysis to decision makers, and evaluating disseminated products and the production process to inform future efforts.

Similarly, the DHS began Intelligence Threat Banding in 2019, a process in which DHS intelligence leadership, as part of the Homeland Security Intelligence Council (HSIC), prioritizes threat topics. Using the Homeland Security Intelligence Priorities Framework as a foundation, the HSIC prioritizes threats within multiple mission areas. The process is informed by DHS' execution of the intelligence cycle – the development of requirements, collection through field operations or open source collectors, and analysis to produce finished intelligence in the DT space.

DHS implements Intelligence Threat Banding across its mission areas. The results drive analytic production through the program of analysis process and informs intelligence resource allocation through Intelligence Guidance in the Secretary's Resource Planning Guidance – DHS' Planning, Programming, Budgeting & Execution (PPBE) process.

During the planning phase of the intelligence cycle, both the FBI and DHS consider the National Intelligence Priorities Framework, which documents the Intelligence Community's priorities; and the FBI also considers its own standing intelligence and investigative responsibilities, which are addressed and prioritized in the TRP process. During the TRP process, the FBI identifies the intelligence needs related to the threat priorities, and those intelligence needs drive the subsequent stages of the intelligence cycle.

During the collection and processing phases of the intelligence cycle, both the FBI and DHS obtain raw intelligence from lawful collection methods consistent with their respective authorities and then synthesize this data into a form intelligence personnel can use. In the analysis and evaluation phases, analysts examine and evaluate all source intelligence, including collected information; add context, as needed; and integrate the information into complete assessments. The analysts make assessments about the implications of the information for the United States and document the assessments in analytic intelligence products.

Legal review is required for any FBI intelligence product, such as an Intelligence Information Report (IIR),¹⁹ related to a potential SIM or other sensitive information, in accordance with the guidelines in the FBI's Domestic Investigations and Operations Guide (DIOG) and identified "legal review triggers." One such legal review trigger is information related to DT. DHS finished intelligence products that involve US persons, Constitutionally-protected activity, and matters with significant oversight equities also undergo a process of legal and intelligence oversight.

Finally, intelligence analysis is disseminated in either a written intelligence product or a verbal briefing during the production phase. Intelligence analysis customers include FBI leadership, policymakers, military leaders, other government officials, private sector partners, and operational counterparts who then make decisions based on the information. DHS finished intelligence products are disseminated to customers through various information portals; on the unclassified networks, the Homeland Security Information Network-Intelligence is the primary means for disseminating both DHS raw and finished intelligence reporting.

Sharing of Information Relating to DT and IT

The FBI's *National Strategy for Information Sharing and Safeguarding* provides the common vision, goals, and framework needed to guide information sharing initiatives with our federal, state, local, and tribal agency partners, foreign government counterparts, and private sector stakeholders. The FBI shares information consistent with the Privacy Act, FBI policy, and any other applicable laws and memoranda of understanding or agreement with other agencies.

¹⁹ An Intelligence Information Report (IIR) is the FBI's primary document used to share raw, non-compartmented FBI intelligence information.

The FBI works closely with our federal, state, local, tribal, and territorial law enforcement partners to investigate and disrupt both DT and IT. The front line of the counterterrorism mission in the United States is the FBI-led Joint Terrorism Task Forces (JTTFs). The FBI maintains about 200 JTTFs nationwide across all 56 FBI Field Offices and in many of our satellite Resident Agencies, with the participation of over 50 federal and over 500 state, local, tribal, and territorial agencies. These relationships are critical to effective information sharing and the leveraging of local expertise and experience in FBI investigations.

The FBI, in coordination with the DHS and/or the National Counterterrorism Center (NCTC), produces Joint Intelligence Bulletins (JIBs) that communicate updated threat information and assessments to our federal, state, local, and tribal partners at the Unclassified // Law Enforcement Sensitive level. JIBs alert our partners to significant arrests – including those accomplished through collaboration among different law enforcement entities – and trends we have observed in both the DT and IT arenas.

As previously discussed, legal review is required for FBI intelligence products related to a potential SIM or other sensitive information, to include information related to DT. This would include raw reporting, such as IIRs.

As mentioned above, DHS products within the DT and IT spaces are shared with Homeland Security stakeholders, including the National Network of Fusion Centers, private sector security officials, and other customers operating at primarily the Unclassified level, via the Homeland Security Information Network.

Criteria and Methodology to Identify or Assign Terrorism Classifications to FBI DT Investigations

While classifications, or categories, help the FBI better understand the criminal actors we pursue, we recognize actors' motivations vary, are nuanced, and sometimes are derived from a blend of socio-political goals or personal grievances. Currently, the US Government broadly divides the DT threat among the following threat categories:

- **Racially or Ethnically Motivated Violent Extremism:** This threat encompasses the potentially unlawful use or threat of force or violence in furtherance of ideological agendas derived from bias, often related to race or ethnicity, held by the actor against others or a given population group. RMVEs purport to use both political and religious justifications to support their racially- or ethnically-based ideological objectives and criminal activities.
- **Anti-Government or Anti-Authority Violent Extremism:** This threat encompasses the potentially unlawful use or threat of force or violence in furtherance of ideological agendas, derived from anti-government or anti-authority sentiment, including opposition to perceived economic, social, or racial hierarchies, or perceived government overreach, negligence, or illegitimacy. This threat category includes the subcategories of SCVEs, MVEs, AVEs, and Puerto Rican National Violent Extremists.

- **Animal Rights/Environmental Violent Extremism:** This threat encompasses the potentially unlawful use or threat of force or violence in furtherance of ideological agendas by those seeking to end or mitigate perceived cruelty, harm, or exploitation of animals and/or the perceived exploitation or destruction of natural resources and the environment.
- **Abortion-Related Violent Extremism:** This threat encompasses the potentially unlawful use or threat of force or violence in furtherance of ideological agendas relating to abortion, including individuals who advocate for violence in support of either pro-life or pro-choice beliefs.
- **All Other Domestic Terrorism Threats:** This category encompasses threats involving the potentially unlawful use or threat of force or violence in furtherance of ideological agendas which are not otherwise defined under or primarily motivated by one of the other DT threat categories. Such agendas could flow from, but are not limited to, a combination of personal grievances and beliefs, including those described in the other DT threat categories. Some actors in this category may also carry bias related to religion, gender, or sexual orientation.

Compliance with Privacy, Civil Rights, and Civil Liberties Policies and Protections

The FBI is responsible for protecting the security of our nation and its people from crime and terrorism while maintaining rigorous obedience to the Constitution and compliance with all applicable statutes, regulations, and policies. The *AGG-Dom* establishes a set of basic principles that serve as the foundation for all FBI mission-related activities. When these principles are applied, they demonstrate respect for civil liberties and privacy as well as adherence to the Constitution and laws of the United States.

The *AGG-Dom* authorizes all lawful investigative methods in the conduct of a full investigation. Considering the effect on the privacy and civil liberties of individuals and the potential to cause harm to, or otherwise damage the reputation of individuals, some of these investigative methods are more intrusive than others. The least intrusive method is to be used, based upon the circumstances of the investigation, but the FBI must not hesitate to use any lawful method consistent with the *AGG-Dom*. A more intrusive method may be warranted in light of the seriousness of a criminal or national security threat or the importance of a foreign intelligence requirement.

By emphasizing the use of the least intrusive means to obtain intelligence or evidence, FBI employees can effectively execute their duties while mitigating the potential negative impact on the privacy and civil liberties of all people encompassed within the investigation, including targets, witnesses, and victims. This principle is not intended to discourage FBI employees from seeking relevant and necessary intelligence, information, or evidence, but rather is intended to encourage FBI employees to choose the least intrusive method, that is still reasonable based upon the circumstances of the investigation, from the available options to obtain the intelligence, information, or evidence.

As a matter of FBI policy, law enforcement activities within the scope of DT investigations are particularly subject to heightened internal legal review and supervisory approvals to ensure Constitutional rights, privacy, and civil liberties are protected at each juncture. DT investigations receive more scrutiny through such legal reviews due to the greater likelihood these investigations may need to navigate First Amendment-protected activities. There are no other differences in how the FBI complies with policy, civil rights, and civil liberties policies and protections relating to DT or IT.

The DHS is steadfastly committed to the highest standards of conduct across the Department, especially when it comes to the equitable and transparent enforcement of our laws. Countering domestic violent extremism is vital to preserving civil rights and civil liberties and can be accomplished while protecting the rights of all persons and communities. Consistent with the DHS mission to secure the nation from threats, the DHS recognizes the mission only succeeds if the Department respects and protects the values of the nation. Since its inception, the DHS has prioritized civil rights, civil liberties, and individual privacy protections in its efforts. These rights must be rigorously guarded.

In confronting the threat of domestic violent extremism, the DHS must take care to avoid stigmatizing populations and infringing on Constitutional rights. To that end, the DHS does not profile, target, or discriminate against any individual for exercising their First Amendment rights. The DHS' prevention, intelligence, and law enforcement work is never based solely on First Amendment-protected activity. DHS policy also prohibits the consideration of race or ethnicity in our intelligence, investigation, screening, and law enforcement activities in all but the most exceptional instances. Further, how the DHS identifies and detects DT requires faithful adherence to fair information practice principles and privacy-focused Departmental policies. The DHS always incorporates privacy protections in information technology systems, technologies, rulemakings, programs, pilot projects, and other activities that involve the planned use of personally identifiable information. The Office for Civil Rights and Civil Liberties and the DHS Privacy Office are involved in every aspect of our counterterrorism and prevention missions. These offices continue to help oversee and train DHS law enforcement and intelligence personnel on how to respect the privacy, civil rights, and civil liberties of all people and communities.

The NCTC ensures its analytic work in support of the FBI and DHS as the lead domestic counterterrorism agencies is fully consistent with the NCTC's statutory authorities and undertaken in accordance with Attorney General-approved guidelines for the protection of US person information, in consultation with agency legal counsel and privacy and civil liberties officers. The NCTC's domestic counterterrorism support to the FBI and DHS focuses on trends, threats, and actors who have committed or attempted to commit crimes determined by these partners to come within the pertinent definition of DT, following the same spectrum of threats as FBI and DHS partners. Analysts work closely with the NCTC's Legal and Civil Liberties and Privacy officers to ensure appropriate scoping of analysis and all DT-related products undergo legal review prior to publication. NCTC officers who support the FBI and DHS in the DT mission space receive specialized training to conduct their mission while adhering to the Constitution, other applicable laws, Executive Order 12333, and ODNI Attorney General-approved guidelines, and must be designated by a supervisor to work on DT-related projects. The

NCTC is not authorized to and does not collect, access, obtain, or maintain information concerning US persons solely for the purpose of monitoring activities protected by the First Amendment or the lawful exercise of other Constitutional rights.

Training or Resources Provided to Federal, State, Local, and Tribal Law Enforcement Agencies

The FBI takes a leadership role in identifying and addressing emerging threats, and as such, actively engages with its federal, state, local, tribal, and territorial law enforcement partners through the JTTFs. The FBI shares and encourages the sharing of intelligence and participates in multi-agency command posts to ensure maximum coordination. In order to proactively address threats, especially during ongoing incidents, the FBI has developed and shared best practices that are implemented across the nation.

The FBI's Behavioral Threat Assessment Center (BTAC), housed within the FBI's Critical Incident Response Group, supports JTTFs as well as state and local law enforcement partners by providing operational support in the form of tailored threat management strategies. In addition to operational support for pending threat investigations, the BTAC also trains on lessons learned from operational experience and research to better aid in prevention efforts. The BTAC is leading an unfunded national Threat Assessment and Threat Management initiative, which endeavors to build and develop stronger partnerships between law enforcement and across all levels of government, in an effort to prevent acts of terrorism and targeted violence.

The FBI, in coordination with the DHS and/or the NCTC, produces JIBs that communicate updated threat information and assessments to our federal, state, local, and tribal partners at the Unclassified // Law Enforcement Sensitive level. JIBs alert our partners to significant arrests – including those accomplished through collaboration among different law enforcement entities – and trends we have observed in both the DT and IT arenas. In 2019, the FBI produced approximately 15 DT-related JIBs, which highlighted the DVE threat, including RMVE and AGAAVE threats.

In 2019, the FBI, the DHS, and the NCTC jointly produced the booklet, *Homegrown Violent Extremist Mobilization Indicators*, which contains a broad list of behavioral indicators that might demonstrate an individual's likelihood of engaging in terrorist activity.²⁰ The booklet was published to help law enforcement partners and the public at large recognize potentially dangerous behaviors to identify terrorists before they conduct deadly attacks. It is important to note some behavioral indicators may have a lawful or Constitutionally-protected explanation, and the FBI considers the totality of the circumstances in determining whether there is a lawful basis for investigative activity.

The FBI also maintains the eGuardian system as a resource to facilitate sharing suspicious activity reports and other terrorism-related information by federal, state, local, tribal, and territorial law enforcement agencies, local and state fusion centers, and the Department of

²⁰ The 2019 edition served as an update to a prior version published in 2017, and it was published on the ODNI's public website.

Defense. Currently, eGuardian is used by agencies in all 50 states and the District of Columbia, including 78 state-level fusion centers and the JTTFs.

Specific to formalized training, the FBI offers the Counterterrorism Baseline Operational Learning Tool (CT BOLT) course to all new counterterrorism employees, including Task Force Officers supporting the JTTFs. In addition to operational training and instruction, the course provides training on applicable privacy and civil liberties law and policy and the fundamentals of protecting First Amendment rights during the course of FBI investigations. The FBI conducts the CT BOLT course on a monthly basis, and in 2019, more than 240 students completed the course.

The DHS' National Threat Evaluation and Reporting Program (NTER), established in 2019, serves as a joint collaborative effort by the DHS and federal, state, local, tribal, and territorial partners that builds on the success of the Nationwide Suspicious Activity Reporting Program. It provides law enforcement and homeland security partners with additional resources and training to help identify and prevent targeted violence and mass casualty incidents implicating homeland security, including those associated with terrorism, as well as facilitating a national capacity for identifying, evaluating, and reporting, and sharing tips and leads related to those threats. The NTER's Master Trainer Program trains homeland security partners to assist their local communities in adapting to an evolving threat landscape. Master Trainers teach behavioral threat assessment techniques and best practices to local partners, and are equipped to empower state, local, tribal, and territorial partners to identify and assess risk and warning signs, and manage potential threats of future, targeted violence regardless of motive.

VI. FBI Data on Domestic Terrorism

The Act calls for the following data and information for the period 1 January 2009 to 20 December 2019, the date of Act's enactment:

- For each completed or attempted DT incident that has occurred in the United States: a description of such incident; the date and location of such incident; the number and type of completed and attempted federal nonviolent crimes committed during such incident; the number and type of federal and state property crimes committed during such incident, including an estimate of economic damages resulting from such crimes; and the number and type of complete and attempted federal violent crimes committed during such incident, including the number of people killed or injured as a result of such crimes.
- An identification of each assessment,²¹ preliminary investigation, full investigation, and enterprise investigation²² with a nexus to DT opened, pending, or closed by the FBI; and the

²¹ An assessment is an investigative activity, which requires an authorized purpose and articulated objective(s). Assessments may be carried out to detect, obtain information about, or prevent or protect against federal crimes or threats to the national security or to collect foreign intelligence.

²² An enterprise investigation is a type of full investigation that examines the structure, scope, and nature of the group or organization including: its relationship, if any, to a foreign power; the identity and relationship of its members, employees, or other persons who may be acting in furtherance of its objectives; its finances and resources; its geographical dimensions; its past and future activities and goals; and its capacity for harm. Enterprise investigations cannot be conducted as preliminary investigations or assessments, nor may they be conducted for the sole purpose of collecting foreign intelligence.

number of assessments, preliminary investigations, full investigations, and enterprise investigations associated with each DT investigative classification.

- The number of assessments, preliminary investigations, full investigations, and enterprise investigations with a nexus to DT initiated as a result of a referral or investigation by a federal, state, local, tribal, territorial, or foreign government of a hate crime.
- The number of federal criminal charges with a nexus to DT, including the number of indictments and complaints associated with each DT investigative classification; a summary of the allegations in each such indictment; the disposition of the prosecution; and, if applicable, the sentence imposed as a result of a conviction on such charges.
- Referrals of DT incidents by or to state, local, tribal, territorial, or foreign governments, to or by departments or agencies of the federal government, for investigation or prosecution, including the number of such referrals associated with each DT investigative classification, and a summary of each such referral that includes the rationale for such referral and the disposition of the applicable federal investigation or prosecution.
- The number of intelligence products associated with each DT investigative classification.
- With respect to the FBI, the number of staff working on DT matters and a summary of time utilization by and recordkeeping data for personnel working on such matters, including the number or percentage of such personnel associated with each DT investigative classification in the FBI's Headquarters Operational Divisions and Field Divisions.
- With respect to the DHS Office of Intelligence and Analysis (I&A), the number of staff working on DT matters.
- With respect to the NCTC, the number of staff working on DT matters and the applicable legal authorities relating to the activities of such staff.

The FBI is providing data for the years 2015 through 2019 to provide the most accurate and consistent information available for terrorism investigations and assessments. During 2014, the FBI moved from a primarily paper-based case management system to an electronic record system, and therefore, information for 2015 and beyond will be the most useful and relevant to the data requirements of the Act.

Completed or Attempted DT Incidents in the United States

The FBI defines a "DT incident" as a criminal act, including threats or acts of violence made to specific victims, made in furtherance of a domestic socio-political goal, which has occurred and can be confirmed. The FBI defines a "DT plot" as a combination of criminal activity and planning that collectively reflect steps toward criminal action in furtherance of a domestic political or social goal. Disrupted DT plots are plots which, in the FBI's assessment, absent law enforcement intervention could have resulted in a DT incident.

The FBI makes every effort to proactively document lethal and non-lethal DT incidents, but it is important to note there is no incident reporting requirement that mandates state and local law enforcement agencies report criminal activity that appears to be motivated by a socio-political goal consistent with the DT threat categories. As such, some DT incidents will likely go unreported by other law enforcement agencies, and those agencies will likely arrest the individual on state or local charges. These factors make it difficult for the FBI to be aware of every DT incident that has occurred in the United States. Therefore, the appendix provides information that represents significant DT incidents and disrupted plots that have occurred in the United States, of which the FBI has knowledge, but not a comprehensive listing of all incidents.

Identification and Number of Each FBI DT Investigation

The FBI was conducting approximately 1,000 pending DT investigations each year for fiscal year (FY) 2017 through 2019. The classified annex to this report provides additional data on the number and threat classification of FBI's DT investigations.

Identification of FBI DT Assessments and Investigations as a Result of a Hate Crime

Hate crimes and DT incidents are often not mutually exclusive. A hate crime is targeted violence motivated by the offender's bias against a person's actual or perceived characteristics, while a DT incident is a criminal act, including threats or acts of violence made to specific victims, made in furtherance of a domestic socio-political goal. Sentencing in a hate crime case or a DT case can be similar when there is a loss of life. To address the intersection of the FBI counterterrorism and criminal investigative missions to combat DT and provide justice to those who are victims of hate crimes, the FBI formally created the Domestic Terrorism-Hate Crimes Fusion Cell in April 2019.

The Hate Crime Statistics Program of the FBI's Uniform Crime Reporting (UCR) Program collects data regarding criminal offenses that were motivated, in whole or in part, by the offender's bias against a person's actual or perceived race/ethnicity/ancestry, national origin, gender, gender identity, religion, disability, or sexual orientation, and were committed against persons, property, or society. The FBI publishes an annual report of hate crime statistics, and in 2019, law enforcement agencies participating in the UCR Program reported 7,314 hate crime incidents.²³

While the FBI collects and reports hate crime statistics, there is no mandatory reporting requirement to identify hate crime incidents that would also be considered criminal activity that appears to be motivated by a socio-political goal consistent with the DT threat categories. Therefore, the FBI does not have the data to be able to determine numbers of DT assessments and investigations that were opened as a result of a hate crime.

²³ The FBI's *Uniform Crime Report, Hate Crime Statistics, 2019*, released fall 2020.

Number of Federal Charges with a DT Nexus

A litany of federal and state charges are used to charge DT subjects for applicable criminal violations. Federal charges include those related to weapons, explosives, threats, attacks on federal officials or facilities, hate crimes, arson, violence against animal enterprises, and material support to terrorists. Under 18 U.S.C. § 2339A, it is a crime to provide material support or resources to another knowing or intending they will be used in preparation for or carrying out certain terrorism-related offenses. Unlike a violation of 18 U.S.C. § 2339B, the recipient of the material support need not be a designated foreign terrorist organization.

From FY 2015 through FY 2019, approximately 846 DT subjects were arrested by or in coordination with the FBI, as follows:

- In FY 2015, approximately 211 DT subjects were arrested, with 130 subjects charged federally and 81 subjects charged with state/local charges.
- In FY 2016, approximately 229 DT subjects were arrested, with 169 subjects charged federally and 60 subjects charged with state/local charges.
- In FY 2017, approximately 186 DT subjects were arrested, with 109 subjects charged federally and 77 subjects charged with state/local charges.
- In FY 2018, approximately 113 DT subjects were arrested, with 54 subjects charged federally, 52 subjects charged with state/local charges, and seven subjects charged with both federal and state/local charges.
- In FY 2019, approximately 107 DT subjects were arrested, with 63 subjects charged federally, 42 subjects charged with state/local charges, and two subjects charged with both federal and state/local charges.

The number of federal criminal charges with a nexus to DT (and the corresponding details of those matters) is not currently maintained by the FBI or DOJ in a comprehensive manner.

Individuals whose conduct involves DT or a threat thereof may be prosecuted by any US Attorney's Office under a wide range of criminal statutes, some of which on their face relate to DT, and others of which do not.²⁴ While the criminal code includes a definition of DT, see 18 U.S.C. § 2331(5), there is no federal DT statute. For example, the DOJ has prosecuted cases against such individuals using weapons charges, e.g., 18 U.S.C. §§ 922, 924; charges relating to use or possession of explosives, e.g., 26 U.S.C. §§ 5845, 5861; threat, hoax, or riot charges, e.g., 18 U.S.C. §§ 871, 875, 876, 1038, 2101; and charges proscribing attacks on federal officials or

²⁴ Several statutes reach conduct that may be associated with terrorism, without regard to whether the offense itself involves domestic or international terrorism. These include statutes relating to aircraft sabotage, id. § 32; weapons of mass destruction, e.g., id. §§ 175, 175b, 175c, 229, 831, 832, 2332a, 2332h, 2332i; arson and bombing of federal property, e.g., id. §§ 844, 2332a, 2332f; and causing injury or death to a federal official, e.g. id. §§ 111, 115, 351, 1114, 1751; among others. It is also a crime to provide material support or resources to another knowing or intending that they be used in preparation for or carrying out certain terrorism-related offenses. Id. § 2339A.

facilities, e.g., id. § 111, 115, 351, 844, 930, 1114, 1361, 1751. Hate crimes charges, e.g., id. § 249, may be appropriate where individuals engage in DT that is motivated by biases against a race, religion, ethnicity, or other specified factors. However, not all hate crimes cases involve DT. Arson, id. § 844, or specific charges relating to violence against animal enterprises, id. § 43, may apply to Animal Rights/Environmental Violent Extremists. In some cases, drug trafficking, tax, or state and local charges could also provide a lawful basis to disrupt an individual believed to be planning or pursuing acts of DT.

The DOJ recognizes the need for coordination and consistency in our efforts to hold accountable DVEs who engage in criminal conduct. An important part of achieving those goals is to have the ability to identify and internally track investigations and prosecutions involving conduct related to domestic violent extremism, and the Department is implementing changes that will allow us to better identify and track such cases. All federal prosecutors have been provided guidance not only highlighting the need for effective coordination, but also implementing a plan for better tracking of the important DVE-related work being done by federal investigators and prosecutors around the country. Until such changes are institutionalized, the Department can provide illustrative examples of cases from 2015 through 2019.

Our US Attorney's Offices, the National Security Division, the Criminal Division, and the Bureau of Alcohol, Tobacco, and Firearms have worked together in recent cases to bring charges under a variety of statutes, including terrorism-related statutes. In several cases, we have disrupted, prosecuted, and convicted individuals before violence occurred, as follows:

- David Ansberry was arrested in October 2016 after placing an improvised explosive device (IED) in the parking lot of the Nederland, Colorado Police Department, believing that law enforcement had murdered a member of a 1960s-1970s counterculture group of which he had also been a member. He was indicted for use and attempted use of a weapon of mass destruction, in violation of 18 U.S.C. § 2332a. Ansberry pleaded guilty and, in January 2019, was sentenced to serve 27 years in prison.
- Jerry Varnell was arrested in August 2017 after trying to detonate an inoperable vehicle borne explosive device at the BancFirst building in downtown Oklahoma City to send an anti-government message. He was indicted for attempting to use a weapon of mass destruction, in violation of 18 U.S.C. § 2332a, and attempting to destroy by fire or explosive a property used in interstate commerce, in violation of 18 U.S.C. § 844(i). Varnell was convicted on both counts in February 2019, and in March 2020, was sentenced to serve 25 years in prison, followed by a lifetime term of supervised release.
- Cesar Sayoc was arrested in October 2018 for mailing 16 IEDs to 13 victims throughout the United States, including Democratic politicians and a media outlet. He was charged in the Southern District of New York with use of a weapon of mass destruction, in violation of 18 U.S.C. § 2332a; interstate transportation of explosives, in violation of 18 U.S.C. § 844(d); threatening interstate communications, in violation of 18 U.S.C. § 875(c); illegal mailing of explosives, in violation of 18 U.S.C. § 1716(j)(2); and use of explosives to commit a felony, in violation of 18 U.S.C. § 844(h). Sayoc pleaded guilty in March 2019 and, in August 2019, was sentenced to serve 20 years in prison.

- Christopher Hasson was arrested in February 2019 based on a criminal complaint for firearm and drug charges. In January 2020, he was sentenced to 160 months in federal prison, followed by four years of supervised release, on four federal charges, including unlawful possession of unregistered silencers, unlawful possession of firearm silencers unidentified by serial number, possession of firearms by an addict to and unlawful user of a controlled substance, and possession of a controlled substance. According to his plea agreement, Hasson was a Lieutenant in the United States Coast Guard. As detailed in the government’s sentencing memo, Hasson self-identified as a “White Nationalist” for over 30 years and in writings advocated for “focused violence” in order to establish a white homeland. Review of Hasson’s e-mail accounts, saved documents, text messages, and Internet searches show that he was inspired by racist murderers, stockpiled assault weapons, studied violence, and intended to exact retribution on minorities and those he considered traitors.
- Jarrett Smith was arrested in September 2019 for distributing explosives information and threatening interstate communication after providing bombmaking instructions online and conducting potential target selection. In February 2020, he pleaded guilty to unlawfully distributing instructions for making explosive devices over social media while he was a member of the US Army. Smith pleaded guilty to two counts of distributing information related to explosives, destructive devices, and weapons of mass destruction. The FBI received information that Smith gave out guidance to others on how to construct IEDs. He spoke to others on social media about wanting to travel to Ukraine to fight with a violent, far-right military group. In August 2020, Smith was sentenced to 30 months in prison.

Similarly, the Department’s Civil Rights Division, in partnership with US Attorney’s Offices, Criminal Division, and National Security Division, has also prosecuted RMVEs in some of the most serious plots and attacks in recent years:

- In June 2015, Dylann Roof killed nine Black parishioners engaged in religious worship and Bible study at Emanuel African Methodist Episcopal Church in Charleston, South Carolina. In December 2016, Roof was convicted of 33 counts of federal hate crimes, and firearms charges, including nine capital counts of obstruction of free exercise of religious beliefs resulting in death, in violation of 18 U.S.C. § 247, and nine capital counts of use of a firearm to commit murder during and in relation to a federal crime of violence, in violation of 18 U.S.C. § 924. In January 2017, Roof was sentenced to death on all 18 capital counts. The sentence of death has been imposed by the court but not yet carried out.
- In 2016, Curtis Allen, Patrick Stein, and Gavin Wright were arrested for plotting to attack an apartment complex and mosque used by Somali immigrants in Kansas. In April 2018, they were convicted of conspiracy to use a weapon of mass destruction, in violation of 18 U.S.C. § 2332a—a terrorism-related offense—as well as conspiracy to violate the housing rights of their victims, in violation of 18 U.S.C. § 241. They received sentences to serve between 25 and 30 years in prison.
- In August 2017, James Fields Jr. intentionally drove a car into a diverse crowd of counter-protestors at the Unite the Right rally in Charlottesville, Virginia, killing one woman and

injuring dozens. In March 2019, he pleaded guilty to one count of a hate crime act that resulted in death and 28 other hate crimes charges, all in violation of 18 U.S.C. § 249. In June 2019, he was sentenced to life imprisonment.

- In November 2019, Richard Holzer was arrested for plotting to blow up the Temple Emanuel Synagogue in Pueblo, Colorado, conduct that constituted an act of DT. Holzer told undercover FBI agents he wanted the bombing to send a message to Jewish people that they must leave his town, “otherwise people will die.” He pleaded guilty to federal hate crime and explosives charges, and in February 2021, he was sentenced to over 19 years in prison, followed by 15 years of supervised release.

The Department also supports efforts to prosecute DVEs under state and local laws. For example, in 2013, the Department secured the first conviction under the District of Columbia’s Anti-Terrorism Act. Floyd Corkins was charged for an attempted shooting at the Family Research Council. He was motivated based on disagreement with the organization’s stance against gay marriage. He was sentenced to 25 years in prison.

Referrals of DT Incidents to the FBI

The eGuardian system is the FBI’s case management system for handling initial threat information of counterterrorism, counterintelligence, cyber incidents, criminal complaints, events, and suspicious activities received from federal, state, local, tribal, and territorial law enforcement agencies, and the Department of Defense. Threat information is then migrated to the FBI’s internal Guardian system where it is evaluated to determine whether the information meets the criteria for an assessment, already exists in FBI holdings, or is for situational awareness only.

Starting in 2019, the FBI implemented a process to “tag” reports of possible DT incidents to enhance program management and operational oversight. It is important to note the tagging process has only been in effect since 2019 and is manual and user-dependent. Therefore, eGuardian reports of incidents referred by our partners that have DT tags may not capture all DT referrals and may inaccurately label some referrals as DT. The FBI received approximately 675 referrals of possible DT incidents in 2019.

Although reports are not available within the eGuardian system to identify the disposition of each referral, as of 2019, approximately 20 percent of the FBI’s DT investigations were opened based on information and referrals from our partners.

The FBI does not refer DT incidents where there is an indication of federal criminal activity to other partners, as the FBI would be the lead investigative agency for those matters.

DT Intelligence Products

From 2015 through 2019, the FBI produced more than 4,000 DT-related intelligence products. The FBI does not have the data to determine the number of intelligence products associated with

each DT investigative classification because the FBI tracks intelligence production by program and not by investigative classification. Additionally, a single intelligence product may contain threat reporting or case information from subjects associated with multiple investigative classifications.

From 2016 to 2019, DHS produced 67 DT-related intelligence products and 1,068 DT-related raw intelligence reports. The DHS does not have reliable data dating back prior to 2016 on this topic.

Number of Staff Working DT Matters

Since the bombing of the Oklahoma City Federal Building in 1995, the FBI's Counterterrorism Division has maintained dedicated resources to detect, disrupt, and mitigate instances of violence and criminal activity associated with DVEs. One of the FBI's most vital assets in the counterterrorism fight is our ability to remain agile in combatting the threats we face. Staffing for the FBI's counterterrorism mission is aligned based on threat priorities and, as is true across the FBI, can and does realign on a moment's notice.

The front line of the counterterrorism mission in the United States is represented by the FBI-led JTTFs, which investigate both DT and IT matters. The FBI established the first JTTF in 1980 in the New York Field Office, applying the task force concept to the counterterrorism mission. Today, the FBI leads approximately 200 JTTFs nationwide across all 56 Field Offices and in many of our satellite Resident Agencies, with participation of over 50 federal and over 500 state, local, tribal, and territorial agencies. The JTTFs are comprised of approximately 4,400 investigators, including FBI Special Agents and Task Force Officers, and additional analysts and professional staff who support these JTTF members and the investigations they lead. The JTTF partnerships at the federal, state, local, tribal, and territorial levels are force multipliers as they leverage local expertise, experience, and resources in FBI counterterrorism investigations.

In FBI Field Offices, squads are dedicated to the counterterrorism mission and not necessarily assigned specifically to investigate DT or IT matters. This is significant because the motivation behind an alleged threat or act of terrorism may not be immediately apparent. Additionally, when an incident occurs, Field Office personnel from all operational programs – for example, criminal or counterintelligence – may respond.

Similar to our posture against the IT threat, the FBI's Counterterrorism Division at Headquarters has a dedicated Domestic Terrorism Operations Section (DTOS), comprised of Special Agents, analysts, and professional staff. The FBI's DTOS oversees and provides operational support to all 56 Field Offices and their Resident Agencies in investigating the use of violence by individuals to further socio-political goals in violation of federal criminal statutes. The Counterterrorism Division also has intelligence and targeting units that work to combat DT specifically, as well as additional units that provide support across our counterterrorism mission, not exclusive to DT or IT matters. Further, all FBI counterterrorism investigations are led by the same Deputy Assistant Director for Operations, who has a unique vantage point from which to

assess the terrorism threat around the globe and prioritize investigations and operations across the country.

An additional asset in the counterterrorism fight is the Domestic Terrorism-Hate Crimes Fusion Cell, created in April 2019. This Fusion Cell creates more opportunities for investigative creativity, provides multi-program coordination, helps ensure seamless information sharing, and enhances investigative resources to combat the DT threat.

Analysis of DT issues within the DHS I&A occurs in the Counterterrorism Mission Center (CTMC). The CTMC provides intelligence support and analysis that focuses on domestic threat actors, including DVEs, consistent with the Department's statutory charges to protect critical infrastructure and screening and vetting in support of border security operations. Within the I&A's CTMC, there is a Domestic Terrorism Branch of analysts dedicated to working within the domestic threat landscape. These analysts often engage with counterparts at the FBI and NCTC to jointly author strategic intelligence products on the threat. Additionally, I&A maintains a presence at state and local fusion centers through its Field Operations Division, and I&A analysts at DHS Headquarters routinely work with those individuals to author joint products on issues relevant to their regions, including domestic violent extremism or threats to critical infrastructure.

The DHS Field Operations Division has approximately 120 personnel deployed to field locations across the United States, primarily in state and local fusion centers. These officers work across a range of threat issues and actors, including the DVE mission space. Field Operations Division officers collect and report intelligence information in serialized raw intelligence reports and provide regionally-focused analysis, which may include DVE topics.

The NCTC serves as the primary US government organization for analyzing and integrating all intelligence pertaining to terrorism and counterterrorism outside of scenarios in which the threat pertains exclusively to domestic terrorists and domestic counterterrorism. While the National Security Act specifies the NCTC has the authority to receive and retain counterterrorism information that is exclusively domestic, the FBI and DHS are the primary organizations countering domestic terrorism. The NCTC identifies and monitors international and transnational trends across a range of violent extremist actors. Domestically, the NCTC can provide appropriate support to the FBI and DHS consistent with its legal authorities and Attorney General-approved guidelines for protecting the privacy, civil rights, and civil liberties of US persons.

VII. Recommendations

The Act requires the Director of the FBI and the Secretary of Homeland Security, in consultation with the DNI, to jointly submit to the appropriate congressional committees a report on DT containing recommendations with respect to needing to change authorities, roles, resources, or responsibilities within the federal government to more effectively prevent and counter DT activities, and measures necessary to ensure the protection of privacy and civil liberties.

The Biden Administration has announced a comprehensive review of domestic violent extremism, to include a review of resources, and policies within the federal government. The FBI, DHS, NCTC, and DOJ are actively participating in this review. Pending completion of this review and further consultation with DOJ leadership, the FBI has no recommendations at this time.

The DHS is continuing to review authorities, expertise, and resources at its disposal to identify, prevent, and mitigate threats to the Homeland from DVEs. The DHS is committed to expanding its ability to collect DVE and DT information that is publicly available through social media and other platforms, while simultaneously safeguarding privacy, civil rights, and civil liberties of all persons, in order to enhance the Department's ability to rapidly analyze and communicate DVE and DT threats so that policy makers and our homeland security partners are enabled to take appropriate action.

Appendix

FBI-Designated Significant Domestic Terrorism Incidents in the United States from 2015 through 2019²⁵

Date and Location	Description	Category²⁶
22 January 2015 Atlanta, Georgia	An individual was arrested and federally charged with tax evasion. The cumulative estimated losses totaled \$1.5 million. In March 2016, the subject was sentenced to one year and one day.	Anti-Government or Anti-Authority Violent Extremism (AGAAVE), specifically Sovereign Citizen Violent Extremism (SCVE)
6 February 2015 Chicago, Illinois	An unidentified individual(s) allegedly set fire to and vandalized an occupied building containing horse carriages. The economic damages were estimated at \$130,000.	Animal Rights/Environmental Violent Extremism
9 February 2015 Orange County, Florida	An individual shot and injured two law enforcement officers in an ambush as the officers responded to a domestic incident. The subject died as a result of engagement with law enforcement.	AGAAVE, specifically SCVE
14 February 2015 Elkins, West Virginia	An individual was arrested and federally charged with knowing possession of stolen explosives in interstate commerce. In April 2015, the subject pleaded guilty, and in July 2015, was sentenced to eight months.	AGAAVE, specifically Anarchist Violent Extremism (AVE)
17 March 2015 Stover, Missouri	An individual was arrested and federally charged for making threats against the President of the United States.	Racially or Ethnically Motivated Violent Extremism (RMVE)
25 March 2015 St. Louis, Missouri	An individual was arrested and federally charged with knowing possession of a machinegun. In November 2015, the subject pleaded guilty, and in February 2016, was sentenced to one year and one day.	AGAAVE, specifically AVE
25 March 2015 Livingston, Montana	An individual was arrested and federally charged with knowing possession of a machinegun and possession of a firearm that is not registered in the National Firearms Registration and Transfer Record. In November 2015, the subject was convicted, and in March 2016, was sentenced to six years.	AGAAVE, specifically Militia Violent Extremism (MVE)

²⁵ Unless otherwise noted, some of these matters are active/pending.

²⁶ This column reflects FBI's categorization for purposes of this report and as required by statute. All defendants are presumed innocent until proven guilty beyond a reasonable doubt in a court of law.

Date and Location	Description	Category ²⁶
2 April 2015 Tallahassee, Florida	Three individuals were arrested on state charges of conspiracy to commit murder of a Black person. In March 2017, one subject pleaded guilty, and in April 2017, was sentenced to four years. In August 2017, the other two subjects were convicted and sentenced to 12 years.	RMVE
10 April 2015 Signal Mountain, Tennessee	An individual was arrested and federally charged with solicitation to commit a crime of violence; intentionally defacing, damaging, or destroying any religious real property, because of the religious character of that property, or attempting to do so; and transmitting in interstate or foreign commerce any communication containing any threat to injure the person of another. In February 2017, the subject was convicted. In September 2020, after going through a lengthy appellate process, the defendant was resentenced to 10 years.	AGAAVE, specifically MVE
17 June 2015 Charleston, South Carolina	An individual shot and killed nine Black people at the Emanuel AME Church. The subject was arrested on state charges of murder and was federally charged with hate crime acts resulting in death; hate crime act involving an attempt to kill; obstruction of free exercise of religious beliefs resulting in death; obstruction of free exercise of religious beliefs involving an attempt to kill and use of a dangerous weapon; and use of a firearm to commit murder during and in relation to a crime of violence. In December 2016, the subject was convicted, and in January 2017, was sentenced to death.	RMVE
9 July 2015 Yavapai, Arizona	Two individuals were arrested on state charges for allegedly shooting and injuring a law enforcement officer during a routine traffic violation inquiry.	AGAAVE, specifically SCVE
31 July 2015 Vestavia Hills, Alabama	An individual was arrested on state charges for assaulting a Black convenience store clerk, and in May 2016, the subject pleaded guilty and received a 12 month suspended sentence.	RMVE
1 August 2015 Clover, South Carolina	Three individuals were arrested and federally charged with conspiracy to violate laws governing firearms and explosive devices. In September 2015, two subjects pleaded guilty, and in January 2016, were each sentenced to 21 months. In December 2015, the third subject pleaded guilty, and in June 2016, was sentenced to 22 months.	AGAAVE, specifically MVE
16 September 2015 Lawrence County, South Dakota	An individual stole a vehicle and shot at law enforcement officers during their pursuit of the subject. The subject died as a result of engagement with law enforcement.	Animal Rights/Environmental Violent Extremism

Date and Location	Description	Category ²⁶
23 September 2015 Wood County, West Virginia	An individual was arrested and convicted on state charges of threatening to commit a terrorist act after advocating to overthrow the government of West Virginia.	AGAAVE, specifically SCVE
7 October 2015 Richmond, Virginia	Three individuals were arrested and federally charged with conspiracy to commit robbery affecting commerce, felon in possession, and conspiracy to commit robbery affecting commerce for plotting to attack synagogues and Black churches. Each subject pleaded guilty and were later sentenced to 17.5 years, 8.75 years, and 7 years, respectively.	RMVE
27 November 2015 Colorado Springs, Colorado	An individual was arrested on state charges of first-degree murder for allegedly attacking a reproductive health care facility, shooting and killing three people and injuring others. The subject was later federally charged with violating the Freedom of Access to Clinic Entrances Act and use of a firearm during a crime of violence resulting in death where the killing is a murder. In total, three people were killed, including one law enforcement officer, and eight people were injured, including four law enforcement officers. The case is currently pending.	Abortion-Related Violent Extremism
2 January 2016 Harney County, Oregon	Multiple individuals seized and occupied the Malheur National Wildlife Refuge. In total, 18 subjects were sentenced to crimes associated with the occupation.	AGAAVE, specifically MVE and SCVE
19 February 2016 Nashville, Indiana	An individual was arrested by local authorities for allegedly attacking a Chinese student with a hatchet. In April 2016, a judge ruled the subject was not competent to stand trial.	RMVE
4 March 2016 Los Angeles, California	Three individuals were arrested on state charges of assault with a deadly weapon with special allegations of a hate crime for allegedly assaulting five Hispanic people.	RMVE
1 May 2016 Seattle, Washington	An individual was arrested and federally charged with unlawful possession of destructive devices for throwing an improvised incendiary device at law enforcement officers, injuring one officer, at a May Day protest. In February 2018, the subject pleaded guilty, and in June 2018, was sentenced to 37 months.	AGAAVE, specifically AVE

Date and Location	Description	Category ²⁶
18 June 2016 Salinas, Puerto Rico	An individual was arrested and federally charged with maliciously damaging or destroying, and attempting to damage or destroy, property by means of fire and explosives of a building and vehicle used in interstate commerce, for allegedly using incendiary devices to damage an agricultural business and targeting first responders, including law enforcements officers. In November 2016, the subject pleaded guilty, and in March 2017, was sentenced to three years.	Animal Rights/Environmental Violent Extremism
22 June 2016 Mount Trumbull, Arizona	An individual was arrested and federally charged with attempted destruction of federal property by use of an explosive for plotting to destroy a Bureau of Land Management cabin. In April 2018, the subject pleaded guilty, and in July 2018, was sentenced to time served.	AGAAVE, specifically MVE
7 July 2016 Dallas, Texas	An individual shot at law enforcement officers during a protest. The subject shot and killed five law enforcement officers, injured six other officers, and injured two other people. The subject died as a result of engagement with law enforcement.	RMVE
7 July 2016 Bristol, Tennessee	An individual was arrested on state charges for shooting at passing cars on a highway and then at law enforcement officers who responded. The subject killed one person and injured one law enforcement officer. In December 2016, the subject pleaded guilty to state charges of first-degree murder and attempted first-degree murder and was sentenced to life.	RMVE
10 July 2016 Evansville, Indiana	An individual was arrested on state charges for the attempted murder of a transgender person. In February 2018, the subject pleaded guilty, and in May 2018, was sentenced to 36 years.	RMVE
17 July 2016 Baton Rouge, Louisiana	An individual shot at law enforcement officers, killing three officers and wounding six others. The subject died as a result of law enforcement engagement.	RMVE
1 August 2016 Randallstown, Maryland	An individual barricaded herself and her child in her residence when law enforcement officers attempted to serve a bench warrant for her failure to appear in court. The subject died as a result of law enforcement engagement.	AGAAVE, specifically SVCE
1 August 2016 Mahaska and Jasper Counties, Iowa	Individuals allegedly set fire to seven large vehicles used in the construction of the Dakota Access pipeline. Economic losses were estimated at approximately \$3 million.	Animal Rights/Environmental Violent Extremism

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16 August 2016 Olympia, Washington	An individual was arrested on state charges of assault in the second degree and malicious harassment for stabbing a Black member of an interracial couple. In October 2017, the subject pleaded guilty and was sentenced to 50 months.	RMVE
21 August 2016 Fort Wayne, Indiana	An individual was arrested on state murder charges for murdering a Black person. In July 2017, the subject pleaded guilty but mentally ill and was sentenced to 65 years.	RMVE
13 September 2016 Phoenix, Arizona	An individual was arrested on state charges of attempt to commit murder in the first degree, aggravated assault with a deadly weapon, endangerment, resisting arrest, and criminal damage for driving a vehicle into three white law enforcement officers, injuring two officers. In April 2019, the subject pleaded guilty, and in June 2019, was sentenced to 35 years.	RMVE
28 September 2016 Zionsville, Indiana	An individual was arrested on state charges of murder for shooting at law enforcement officers when they attempted to serve the arrest warrant for the murder of a white person. In February 2019, the subject was found guilty, and in April 2019, was sentenced to 65 years.	RMVE
30 September 2016 Van Buren Township, Michigan	An individual fled a routine traffic stop and led law enforcement officers on a high speed chase. The subject died as result of law enforcement engagement.	AGAAVE, specifically SCVE
7 October 2016 Hilliard, Ohio	An individual was arrested on state charges of conspiracy to commit murder for plotting to conduct a shooting at a high school. In January 2018, the subject plead no contest, and in February 2018, was sentenced to four years.	RMVE
4 October 2016 Garden City, Kansas	Three individuals were arrested for plotting a mass casualty attack using explosives against an apartment building where multiple Somali immigrants lived and worshipped. In January 2019, two subjects were found guilty of federal charges of conspiracy to use a weapon of mass destruction and conspiracy against civil rights, and the third subject was found guilty of knowingly and willingly making false statements. The subjects were sentenced to 30 years, 26 years, and 25 years, respectively.	AGAAVE, specifically MVE
16 October 2016 Jasper County, Iowa	Individuals allegedly set fire to four pieces of equipment used in the construction of the Dakota Access pipeline. Economic losses were estimated at approximately \$2 million.	Animal Rights/Environmental Violent Extremism

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22 October 2016 La Pine, Oregon	An individual was arrested on state charges of reckless driving, third-degree escape, fourth-degree assault, resisting arrest, unlawful use of a weapon and reckless endangerment for assaulting a law enforcement officer, attempting to take the officer's weapon, and escaping custody during a vehicle pursuit. In October 2018, the subject pleaded guilty and was sentenced to 60 days.	AGAAVE, specifically SCVE
27 October 2016 Morton County, North Dakota	Individuals allegedly participated in civil disorder, trespassing, and setting property on fire during a Dakota Access Pipeline protest. One subject was arrested and federally charged with civil disorder and use of fire to commit a federal felony crime. The subject later plead guilty to civil disorder, and in May 2018, was sentenced to three years.	Animal Rights/Environmental Violent Extremism
8 November 2016 Buena Vista County, Iowa	Individuals allegedly set fire to four pieces of equipment used in the construction of the Dakota Access pipeline. Economic losses were estimated at approximately \$2.5 million.	Animal Rights/Environmental Violent Extremism
3 December 2016 Yanceyville, North Carolina	Two individuals were arrested on state charges of assault with a deadly weapon for allegedly stabbing and injuring their associate.	RMVE
1 February 2017 Berkeley, California	Individuals allegedly damaged property and assaulted law enforcement officers and attendees at an event featuring a political commentator.	AGAAVE, specifically AVE
15 February 2017 Myrtle Beach, South Carolina	An individual was arrested and federally charged with illegal possession of a firearm by a felon. In February 2018, the subject pleaded guilty, and in July 2018, was sentenced to 33 months.	RMVE
15 February 2017 Tipton County, Tennessee	Three individuals were arrested for conspiring to break an associate out of jail and kidnap a law enforcement officer and a judge. One subject was arrested by Canadian authorities in April 2017. The second subject pleaded guilty to federal charges of conspiracy to commit an act of violence, to wit, kidnapping, and in August 2017, was sentenced to 5 years. In December 2017, the third subject pleaded guilty to a federal charge of misprision of a felony and entered into a pre-trial diversion agreement.	AGAAVE, specifically SCVE
20 March 2017 New York City, New York	An individual was arrested on state charges of first-degree murder in furtherance of an act of terrorism, second-degree murder as a crime of terrorism, second-degree murder as a hate crime, and fourth-degree criminal possession of a weapon, for killing a Black person with a sword. In January 2019, the subject pleaded guilty, and in February 2019, was sentenced to life in prison.	RMVE

Date and Location	Description	Category ²⁶
28 March 2017 Ada County, Idaho	An individual allegedly shot at law enforcement officers during the arrest of his father for alleged sovereign citizen fraudulent filings. The subject was injured as a result of law enforcement engagement.	AGAAVE, specifically SCVE
13 April 2017 Austin, Texas	An individual believed to be plotting a mass shooting was arrested on federal charges of illegal possession of a firearm. In September 2017, the subject pleaded guilty and was sentenced to five years of probation.	AGAAVE, specifically SCVE
18 April 2017 Fresno, California	An individual was arrested on state charges of homicide, attempted homicide, discharging a firearm into an inhabited dwelling, and possession of a firearm by a felon for shooting and killing three white people.	RMVE
5 May 2017 Washington, DC	An individual allegedly purchased a fully automatic AK-47 and made statements about carrying out violence against law enforcement officers. The subject was arrested and federally charged with firearms offenses. In October 2018, the subject pleaded guilty; the case is pending.	RMVE
16 May 2017 Three Forks, Montana	Two individuals allegedly shot and killed a law enforcement officer during a traffic stop and then led officers on a high speed chase and shootout. One subject was arrested on state charges of deliberate homicide, and the other died as a result of engagement with law enforcement.	AGAAVE, specifically MVE
14 June 2017 Alexandria, Virginia	An individual with a personalized violent ideology targeted and shot Republican members of Congress at a baseball field and wounded five people. The subject died as a result of engagement with law enforcement.	Domestic Violent Extremist (DVE)
5 August 2017 Bloomington, Minnesota	Three individuals were arrested and federally charged with unlawful possession of a machine gun, conspiracy to interfere with commerce by threats and violence, and attempted arson for allegedly bombing a mosque and a women's health clinic. In January 2019, two of the three subjects pleaded guilty. In December 2020, the third defendant was convicted of destruction of religious property, obstruction of religious beliefs, using a destructive device in relation to crimes of violence, possession of an unregistered destructive device, and conspiracy charges. The case is pending.	AGAAVE, specifically MVE
7 August 2017 Indianapolis, Indiana	An individual was arrested on state charges of attempted murder and criminal recklessness after allegedly barricading himself in his residence and shooting at law enforcement officers attempting to serve him an eviction notice.	AGAAVE, specifically SCVE

Date and Location	Description	Category ²⁶
12 August 2017 Charlottesville, Virginia	An individual was arrested and federally charged with a hate crime resulting in death, hate crime acts involving attempt to kill, and bias-motivated interference with federally protected activity resulting in death on state charges for driving a vehicle into a crowd of protestors, killing one person and injuring at least 19 others. In December 2018, the subject pleaded guilty and was subsequently sentenced to life in prison.	RMVE
12 August 2017 Charlottesville, Virginia	An individual was arrested on state charges of discharging a firearm within one thousand feet of a school for shooting at a Black person at a protest. In May 2018, the subject pleaded no contest, and in August 2018, was sentenced to eight years.	RMVE
12 August 2017 Oklahoma City, Oklahoma	An individual was arrested and federally charged with malicious attempted destruction of a building used in and affecting interstate commerce by means of an explosive and attempted use of a weapon of mass destruction for plotting to detonate what he believed was a vehicle borne improvised explosive device at a bank headquarters. In February 2019, the subject was found guilty. In March 2020, the subject was sentenced to 25 years.	AGAAVE, specifically MVE
18 August 2017 Kissimmee, Florida	An individual was arrested on state charges of premeditated murder for shooting and killing two law enforcement officers. In December 2019, the subject was convicted and was sentenced to death.	RMVE
20 August 2017 Livonia, Louisiana	An individual was arrested on a state charge of using, carrying, and/or possessing a firearm during a crime of violence and federally charged with carjacking for taking a hostage at gun point, discharging a firearm at the hostage and a convenience store clerk, robbing the convenience store, and attempting to rape two women. In September 2019, the subject pleaded guilty, and in February 2020, was sentenced to 20 years.	AGAAVE, specifically MVE
20 October 2017 Gainesville, Florida	Three individuals were arrested on state charges of attempted homicide for shooting at a group of protesters at a speaking event. In August 2018, one subject pleaded guilty to a state charge of accessory after the fact to attempted first degree murder, and in March 2019, was sentenced to 5 years. In February 2019, the second subject pleaded guilty to state charges of aggravated assault with a deadly weapon and possession of a firearm by a felon, and was sentenced to 15 years. In October 2019, the third subject pleaded guilty to assault and was sentenced to 5 years.	RMVE

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3 December 2017 Somerset, Pennsylvania	An incarcerated individual allegedly attempted to kill a corrections officer because the officer was friendly with Black prisoners. The subject had an extensive criminal history and was serving multiple life sentences.	RMVE
2 January 2018 Orange County, California	An individual was arrested on state charges of murder with a hate crime enhancement for allegedly killing a homosexual Jewish college student.	RMVE
9 February 2018 Locust Grove, Georgia	An individual shot at three law enforcement officers, killing one and injuring two, who were attempting to arrest him. The subject died as a result of engagement with law enforcement.	AGAAVE, specifically SCVE
17 March 2018 Murfreesboro, Tennessee	An individual was arrested on state charges of homicide for killing his Black housemate by setting the victim on fire. In July 2019, the subject pleaded guilty and was sentenced to life.	RMVE
19 August 2018 Pittsburgh, Pennsylvania	An individual was arrested on state charges of homicide for allegedly stabbing and killing a Black person outside of a bar.	RMVE
1 October 2018 Oklahoma	Law enforcement officers attempted to arrest an individual with a personalized violent ideology on state charges related to allegedly making online threats to kill law enforcement. During the arrest, the subject allegedly engaged in gunfire with law enforcement and was injured before being taken into custody.	DVE
23 October 2018 San Juan, Puerto Rico	Individuals were arrested for allegedly throwing rocks and other objects toward law enforcement officers and vandalizing property.	AGAAVE, specifically Puerto Rican National Violent Extremism
24 October 2018 Jeffersontown, Kentucky	An individual was arrested on state charges of murder, wanton endangerment, and attempted murder for allegedly shooting and killing two Black people in a grocery store. The subject was later federally charged with a hate crime resulting in death, use and discharge of a firearm to commit murder during and in relation to a crime of violence, and a hate crime with attempt to kill. In March 2021, the subject pleaded guilty to hate crimes and firearms offenses; the case is pending.	RMVE

Date and Location	Description	Category ²⁶
27 October 2018 Pittsburgh, Pennsylvania	An individual was arrested and federally charged with obstruction of exercise of free religious beliefs resulting in death, use of a firearm to commit murder during and in relation to a crime of violence, obstruction of free exercise of religious beliefs resulting in bodily injury to a public safety officer, and use and discharge of a firearm during and in relation to a crime of violence for allegedly shooting and killing multiple people at a synagogue during a religious service. In January 2019, the subject was charged with additional hate crimes and firearms offenses. In total, 11 people were killed, and at least six others were injured. The case is pending.	RMVE
26 October 2018 Plantation, Florida	An individual with a personalized violent ideology was arrested and federally charged with use of weapons of mass destruction; transport or receive, in interstate or foreign commerce any explosive with the knowledge or intent that it will be used to kill, injure, or intimidate; transmit in interstate or foreign commerce any communication containing any threat to injure; knowingly deposits for mailing or delivery, or knowingly causes to be delivered by mail, anything declared non-mailable, with intent to kill or injure; uses/carries an explosive to commit or during the commission of any felony, for mailing possible improvised explosive devices to US representatives, former US government officials, private citizens, and national media figures. In March 2019, the subject pleaded guilty, and in August 2019, was sentenced to 20 years.	DVE
10 December 2018 Toledo, Ohio	Two individuals were arrested and federally charged for their involvement in planning terrorist attacks against a local bar and an interstate pipeline. The subjects pleaded guilty and in November and December 2019, they were sentenced to 15 years and 6 years, respectively.	AGAAVE, specifically AVE
18 January 2019 Islamberg, New York	Three individuals were arrested on state charge for plotting to attack Muslim residents of Islamberg, New York. In June 2019, one subject pleaded guilty to attempted illegal possession of a weapon, and in September 2019, was sentenced to seven years. In June 2019, the other two subjects pleaded guilty to conspiracy in support of terrorism, and in August 2019, were sentenced to four to 12 years.	RMVE

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15 February 2019 Silver Spring, Maryland	An individual was arrested and federally charged with unlawful possession of unregistered firearm silencers, unlawful possession of a firearm, and possession of a controlled substance. In October 2019, the subject pleaded guilty, and in January 2020, was sentenced to 160 months.	RMVE
25 March 2019 and 4 April 2019 New York and Missouri	Two individuals were arrested and federally charged with making a material false statement to the FBI in connection with their alleged plot to attack a mosque or synagogue. In July 2019, one subject pleaded guilty and was sentenced to time served. In August 2019, the other subject pleaded guilty, and in December 2019 was sentenced to probation.	RMVE
24 April 2019 San Diego, California	An individual was arrested and federally charged with malicious destruction of a building by means of fire for driving a vehicle into a building occupied by a cleared defense contractor and then setting the vehicle on fire. In June 2019, the subject pleaded guilty, and in November 2019, was sentenced to seven years. The subject was also ordered to pay \$93,633 to the victim.	AGAAVE, specifically AVE
27 April 2019 Poway, California	An individual was arrested on state charges of murder and attempted murder for allegedly conducting a shooting at a synagogue, killing one person and injuring three others. The subject was later federally charged with obstruction of free exercise of religious beliefs resulting in death and bodily injury, involving attempt to kill, use of a deadly weapon; hate crime acts, and damage to real religious property involved the use of a dangerous weapon or fire.	RMVE
6 June 2019 Brownsville, Texas	An individual was arrested on state charges of making terroristic threats on social media toward a synagogue, mosque, and a federal building. The subject was later federally charged with making a threat with explosive materials and false information and hoaxes. In August 2020, the subject pleaded guilty, and in November 2020, was sentenced to two years.	RMVE
17 June 2019 Dallas, Texas	An individual shot at people and buildings, including a US Federal Courthouse. The subject died as a result of engagement with armed security officers.	AGAAVE
18 June 2019 Jacksonville, North Carolina	An individual was arrested for allegedly planning to conduct a mass shooting targeting synagogues.	RMVE

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13 July 2019 Takoma, Washington	An individual threw incendiary devices at vehicles and outbuildings at a federal detention center and engaged responding law enforcement officers with an AR-style rifle. The subject died as a result of engagement with law enforcement.	AGAAVE, specifically AVE
28 July 2019 Gilroy, California	An individual with a personalized violent ideology attacked a festival, shooting and killing three people and injuring 16 others. The subject died as a result of engagement with law enforcement.	DVE
3 August 2019 El Paso, Texas	An individual was arrested on state charges of capital murder for allegedly attacking a retail store, shooting and killing 22 people and injuring 25 others.	RMVE
8 August 2019 Las Vegas, Nevada	An individual was arrested and charged federally with possession of an unregistered firearm or explosive device after discussing threats against multiple targets including a synagogue and an LGBTQ nightclub. In February 2020, the subject pleaded guilty, and in November 2020, was sentenced to two years.	RMVE
21 September 2019 Fort Riley, Kansas	An individual was arrested and federally charged with distributing explosives information and threatening interstate communication after providing bombmaking instructions online and conducting potential target selection. In February 2020, the subject pleaded guilty, and in August 2020, was sentenced to 30 months.	RMVE
10 December 2019 Jersey City, New Jersey	Two individuals shot and killed one law enforcement officer, and then attacked a kosher supermarket, shooting and killing three people and injuring three others, including two responding officers. The subjects died as a result of engagement with law enforcement.	RMVE
28 December 2019 Monsey, New York	An individual was arrested and charged federally with a hate crime act involving an attempt to kill, and obstruction of free exercise of religious beliefs involving an attempt to kill and use of a dangerous weapon, and resulting in bodily injury, for allegedly attacking the home of a Hasidic rabbi with a machete during a Hanukkah celebration, killing one person and injuring four others. The case is pending.	RMVE